

Module 9: Borders, Sovereignty, and Policy

Signature Learning Experience

Purpose

Students do real legal analysis: one migration case study examined through the frameworks that govern borders — sovereignty, the 1951 Convention, non-refoulement, due process. The assignment teaches how to read law against practice and write a structured legal memo.

Aligned learning outcomes

- Explain border and enforcement concepts in the chosen case (UG 1)
- Identify the legal frameworks that apply — domestic and international (UG 2)
- Describe enforcement practices and the rights issues they raise (UG 3)
- Understand how sovereignty and rights claims collide in practice (UG 4)

Graduate extension

Graduate students analyze a line of 3–4 related cases rather than one, map the doctrine's trajectory, and defend a position on how the tension should be resolved — then critique their own argument (Grad 1–2).

Assignment steps

1. Select a case or controversy from the provided list (e.g., a non-refoulement challenge to a border expulsion policy; a family detention case; an externalization agreement litigated in domestic courts; a state–federal enforcement conflict) or propose one.
2. Establish the facts precisely from primary documents — the ruling itself, filings, or official summaries — not just news coverage.
3. Identify every legal framework in play: constitutional provisions, statutes, the 1951 Convention and Protocol, regional human rights instruments.
4. Analyze the core tension: what does the state claim sovereignty permits, what do rights instruments require, and how did the decision-maker resolve it?
5. Assess the reasoning: is it consistent with precedent and treaty obligations? Where is it vulnerable?
6. Write it as a legal memo: facts, issues, applicable law, analysis, conclusion. Plain English; every legal claim cited.

Deliverables & format

- Legal analysis memo, 1,500–2,000 words (graduate: 2,500+, multi-case doctrinal analysis)
- Framework table listing each legal source and what it requires
- Case documents list (primary sources used)

Grading rubric

Each criterion is scored at one of four levels, then weighted as shown. The overall grade is the weighted combination of criterion scores. Instructors may adapt weights and descriptors to local requirements.

Criterion (weight)	Exemplary (A)	Proficient (B)	Developing (C)	Beginning (D–F)
Accuracy of legal frameworks and case facts 30%	Evidence and accuracy are exemplary: accuracy of legal frameworks and case facts is met with high-quality, correctly cited sources for every substantive claim; terms, facts, and frameworks are used precisely.	Evidence and accuracy are solid: accuracy of legal frameworks and case facts is met for nearly all claims, with only minor sourcing gaps or imprecisions that do not affect conclusions.	Evidence and accuracy are uneven: accuracy of legal frameworks and case facts is partly met — some claims lack support, sources are thin or misread, or terms are used loosely in ways that weaken conclusions.	Evidence and accuracy are deficient: accuracy of legal frameworks and case facts is not met; key claims are unsupported or wrong, and errors undermine the work's conclusions.
Quality of the sovereignty-vs-rights analysis 30%	Analysis is genuinely insightful: quality of the sovereignty-vs-rights analysis goes beyond summary to produce non-obvious, well-defended conclusions; concepts are applied accurately, complexity is preserved, and counterpoints are engaged seriously.	Analysis is competent: quality of the sovereignty-vs-rights analysis is achieved with clear reasoning and accurate use of course concepts, though conclusions stay near the expected.	Analysis is thin: quality of the sovereignty-vs-rights analysis is attempted but leans on summary or assertion; concepts are named more than used, and complications are avoided.	Analysis is absent: quality of the sovereignty-vs-rights analysis is not achieved; the work describes without analyzing or draws conclusions its own material does not support.
Critical assessment of the reasoning, not just description 25%	Analysis is genuinely insightful: critical assessment of the reasoning, not just description goes beyond summary to produce non-obvious, well-defended conclusions; concepts are applied accurately, complexity is preserved, and counterpoints are engaged seriously.	Analysis is competent: critical assessment of the reasoning, not just description is achieved with clear reasoning and accurate use of course concepts, though conclusions stay near the expected.	Analysis is thin: critical assessment of the reasoning, not just description is attempted but leans on summary or assertion; concepts are named more than used, and complications are avoided.	Analysis is absent: critical assessment of the reasoning, not just description is not achieved; the work describes without analyzing or draws conclusions its own material does not support.

Criterion (weight)	Exemplary (A)	Proficient (B)	Developing (C)	Beginning (D–F)
Memo structure, clarity, and citation 15%	Communication is publication-ready: memo structure, clarity, and citation is achieved with precise, well-organized prose, correct citation, and figures or formats that make the argument easier to grasp.	Communication is clear and professional: memo structure, clarity, and citation is achieved with minor lapses in polish, organization, or citation that never obscure meaning.	Communication is understandable but rough: memo structure, clarity, and citation is only partly achieved — disorganization, citation errors, or unclear figures make the reader work to follow the argument.	Communication impedes the work: memo structure, clarity, and citation is not achieved; errors, disorganization, or missing citations obscure the substance.